and a rules breach. The letter made its way to the media, lending it a touch of public shaming. Then, at a farewell in August, CJI B.R. Gavai vowed to vacate before his November retirement, praising a retiring colleague who "set a good example" by promptly vacating his official residence, a thinly veiled jab at his predecessor. "This episode was quite unusual. The trigger for this could be something extremely personal and not procedural," says a former SC judge.

If the bungalow row hinted at personal rancour peeking above the surface, an episode soon after bared an even deeper rift within the apex court. Last month, Justices J.B. Pardiwala and R. Mahadevan lambasted an Allahabad High Court judge's "absurd" handling of a case, stripping him of all criminal matters till retirement and ordering that he be paired with a senior judge.

The move was condemned as overreach: HC bench assignments rest solely with its chief justice. Outrage erupted in Allahabad, with 13 judges calling the SC diktat unconstitutional. Sensing a crisis, CJI Gavai intervened and Justice Pardiwala's bench modified its order. What surprised many, however, was that both Gavai and his successor-designate, Justice Surya Kant, went on to chastise their colleagues—Justices Pardiwala and Mahadevan—in media interviews.

FRACTURED COLLEGIUM

Another breach in the facade of unity happened last month when Justice B.V. Nagarathna, the lone woman on the SC collegium, broke ranks with a rare written dissent note. She opposed the elevation of Justice Vipul M. Pancholi, Patna High Court chief justice, calling it "counter-productive" and damaging to the collegium's credibility. While the collegium backed Pancholi 4-1, Justice Nagarathna's note again found its way to the press.

Not just sitting judges, even long-superannuated ones are also brawling in public. In August, 50 former judges, including two ex-CJIs, blasted 18 retired colleagues for backing Justice B. Sudershan Reddy, the Opposition's vice-presidential pick, after Union home minister Amit Shah accused him of "supporting Naxalism" in a 2011 ruling. The 18 former judges had urged restraint, calling Shah's claim a "misinterpretation". But the counter-letter accused them of dressing up Opposition politics as judicial independence.

Why are Indian judges, long bound by an unwritten code of omertà, suddenly so willing to turn up the volume in front of the nation? Part of the answer lies in the growing media attention, particularly on social media, pushing judges to be more vocal. "Relentless scrutiny has magnified every exchange inside and outside the courts, with non-lawyer audiences of online platforms and live reporting fuelling broader debates on courtroom proceedings. The media has made judges public figures. So, we are witnessing public conversations," says senior advocate Sidharth Luthra. Retired SC judge, Justice Hrishikesh Roy, concurs: "Even offhand oral observations in court are dissected, often stripped of context. Judges mostly stay silent, but the pressure to react is real, even if nine times out of ten they resist."



Flashpoints

- **Former CJI Chandrachud shamed for overstaying in official residence; successor CJI Gavai uses a farewell speech to jab at him**
- **SC judges strip an Allahabad High Court judge of cases; court judges revolt, calling it unconstitutional interference**
- **Justice B.V. Nagarathna opposes elevation of Justice Pancholi; leaked dissent note exposes deep cracks in collegium system**
- **Fifty ex-judges attack 18 peers for defending Opposition V-P nominee Justice B. Sudershan Reddy against Amit Shah's Naxalism remark**

POWER AND PERSONA

The recent spats also have a more human dimension. Today's Supreme Court is marked by strong, visible figures unafraid of public glare. Justice Chandrachud cast himself as a progressive voice and champion of civil liberties. Justice Gavai projected the image of a disciplinarian, intent on restoring propriety. Justices Pardiwala and Mahadevan adopted an almost zealous approach in reining in a lower-court judge, while Justice Surya Kant took the present one's cue in signalling institutional propriety. "A handful of judges actively cultivate the media to burnish their own image, sometimes at the unintended cost of undermining their colleagues," says Justice Roy. An SC lawyer even sought to add a timeline to this phenomenon of judges courting journalists. "It began a decade ago, when a former CJI started addressing 'my friends in the media' before and after his speeches. Ironically, he soon found other judges taking to the media to speak out against him," says the lawyer.

If these spats harden into factionalism, the SC could forfeit its moral authority and open the door to outside interference. Discord only strengthens critics who cloak demands for executive control as "reform". Seven in 10 Indians, as last month's INDIA TODAY Mood of the Nation poll showed, still place their faith in the judiciary. It's an extraordinary reserve of trust built around integrity and collegial harmony. Judges need to honour, not erode, it. Temperance would help. ■